

25STCV33101 25STCV33101

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-14

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Case Number: 25STCV33101 Hearing Date: July 14, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

INDIA'S CLAY PIT NOHO, INC.,

Plaintiff,

vs.

BMW OF NORTH AMERICA, LLC,

Defendant.

Case No.:

25STCV33101

Hearing Date:

July 14, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT BMW OF NORTH AMERICA, LLC'S MOTION
FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, SUMMARY ADJUDICATION

Plaintiff India's Clay Pit NoHo,
Inc. ("Plaintiff") filed this lemon law action on November 12, 2025, against
Defendant BMW of North America, LLC ("BMW"), alleging two causes of action under the
Song-Beverly Act for (1) breach of implied warranty of merchantability and (2) breach of
express warranty.

BMW now moves for summary judgment or,
in the alternative, summary adjudication. Plaintiff opposes. BMW did not reply.

Plaintiff's opposing papers highlight
that BMW's motion is procedurally deficient. Under Code of Civil Procedure
section 437c, subdivision (a)(2), "[n]otice of the motion and supporting papers
shall be served on all other parties to the action at least 81 days
before the time appointed for hearing." Plaintiff asserts that "[t]he time
appointed for the hearing of BMW's motion for summary judgment ('MSJ') is July
14, 2026, making the service date at least April 24, 2026. As evidenced on
BMW's Proof of Service attached to its Notice of Motion and Motion for Summary
Judgment and all its supporting documents, BMW served its MSJ and supporting
documents on May 22, 2026, which is 28 days later than required by the Code of
Civil Procedure." (Opp., 3:27-4:4.) Thereafter, on July 6, 2026, BMW filed an
amended notice of motion for summary judgment, with a new reservation date of
October 1, 2026.

Based on the foregoing, BMW's
motion for summary judgment is continued to October ____, 2026, at 2:00 p.m. in Dept. 508. (Note: October
1st is no longer available because the Court recently set another
MSJ on that same date. October 6, 13, 20 or 22 are available dates.)

The moving party is reminded that the summary judgment
compilation/binder must be lodged in Department 508 concurrently with the
filing of the reply brief.

BMW is ordered to give notice of this
Order.

DATED: July 14, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court